

25LBCV01032 25LBCV01032

County: los-angeles

Division: Civil Law and Motion

Department: S28

Hearing date: 2026-08-07

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Case Number: 25LBCV01032 Hearing Date: August 7, 2026 Dept: S28

Background

On May 5, 2026, the Court granted Defendant's motion to compel Plaintiff's deposition and ordered Plaintiff to sit for deposition within 10 Court days of the Order. Sanctions were not sought.

On June 4, 2026, the Court denied Plaintiff's counsel's motion to be relieved as counsel where Counsel stated that they have not been able to make contact with Plaintiff since December 2025. Plaintiff's counsel inexplicably delayed in seeking to be relieved and it was too close to the then June 15, 2026 trial date for Plaintiff to be left without Counsel.

On that same date, the Court granted Defendant's Unopposed Motions to Compel Initial Responses to Form Interrogatories, Requests for Production, and Special Interrogatories, Set Ones, and Motion to Deem Requests for Admissions Admitted. The Court ordered Plaintiff to serve verified objection free responses within 10 Court days.

On June 12, 2026, three days before trial, the Court held a final status conference. Only Defendant's trial documents had been filed. Counsel for Defendant represented to the Court that they had been unable to depose the Plaintiff and that they intend to file a Motion for Terminating Sanctions. The Court continued trial to July 21, 2026.

On June

24, 2026, Defendant filed the instant motion for terminating sanctions.

On July

17, 2026, the Court continued the hearing on the instant motion to August 7, 2026. Trial is presently set for August 10, 2026.

On July

17, 2026, the original date for hearing, Plaintiff filed an untimely opposition to the motion; Defendant filed a reply on July 31, 2026.

Authority

If, after

a court grants an order to compel a party's attendance, the party or party-affiliated deponent then fails to obey the order compelling attendance, testimony, or production, the court may make orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010) against that deponent or against the party. (Code Civ. Proc., § 2025.450(h).)

Code of

Civil Procedure § 2023.030 gives the court the discretion to impose sanctions against anyone engaging in a misuse of the discovery process. Misuse of the discovery process includes failure to respond to an authorized method of discovery or disobeying a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g).) A court may impose terminating sanctions by striking pleadings of the party engaged in misuse of discovery or entering default judgment. (Code Civ. Proc., § 2023.030, subd. (d).) A violation of a discovery order is sufficient for the imposition of terminating sanctions. *Collison & Kaplan v. Hartunian* (1994) 21 Cal.App.4th 1611, 1620. Terminating sanctions are appropriate when a party persists in disobeying the court's orders. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 795-796.)

The court

should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246.) If a

lesser sanction fails to curb abuse, a greater sanction is warranted. (Van Sickle v. Gilbert (2011) 196 Cal.App.4th 1495, 1516.) However, "the unsuccessful imposition of a lesser sanction is not an absolute prerequisite to the utilization of the ultimate sanction." (Deyo, supra, 84 Cal.App.3d at p. 787.) Before any sanctions may be imposed the court must make an express finding that there has been a willful failure of the party to serve the required answers. (Fairfield v. Superior Court for Los Angeles County (1966) 246 Cal.App.2d 113, 118.) Lack of diligence may be deemed willful where the party understood its obligation, had the ability to comply, and failed to comply. (Deyo, supra, 84 Cal.App.3d at p. 787; Fred Howland Co. v. Superior Court of Los Angeles County (1966) 244 Cal.App.2d 605, 610-611.) The party who failed to comply with discovery obligations has the burden of showing that the failure was not willful. (Deyo, supra, 84 Cal.App.3d at p. 788; Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250; Evid. Code, §§ 500, 605.)

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terminating sanction is a "drastic measure which should be employed with caution." (Deyo, 84 Cal.App.3d at p. 793.) "A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) While the court has discretion to impose terminating sanctions, these sanctions "should be appropriate to the dereliction and should not exceed that which is required to protect the interests of the party entitled to but denied discovery." (Deyo, 84 Cal.App.3d at p. 793.) "[A] court is empowered to apply the ultimate sanction against a litigant who persists in the outright refusal to comply with his discovery obligations." (Ibid.)

Analysis

Here,

Plaintiff has demonstrated a total failure to participate in discovery. Plaintiff never provided discovery responses or made herself available for deposition, in violation of two Court Orders. Plaintiff also failed to timely oppose this Motion. Despite its untimeliness, the Court has considered the untimely opposition and Defendant's reply thereto; the Court does not find the

arguments of Plaintiff persuasive. Plaintiff's conduct evidences intentional and willful violation of the Orders. This is Plaintiff's action and she has failed to participate in any discovery. These outstanding discovery issues coupled with Plaintiff's failure to file pretrial documents have already necessitated one trial continuance. This case is over one year old and the parties are in essentially the same place discovery wise as when the action was filed. Discovery is now closed and Defendant has not had the opportunity to depose Plaintiff or receive basic discovery responses. Defendant will be significantly prejudiced if they must proceed with trial without Plaintiff's deposition and discovery responses. It does not appear that lesser sanctions would induce Plaintiff's compliance with the discovery rules because Plaintiff has twice failed to comply with the Court's specific orders. It appears Plaintiff is unreachable, and Plaintiff's counsel is no longer diligently prosecuting this case.

Thus,
Defendant's motion for terminating sanctions is GRANTED. This action is DISMISSED.

Defendant
also requests monetary sanctions. In light of Plaintiff's discovery abuse, the request is GRANTED in the amount of \$500, jointly and severally against Plaintiff and Plaintiff's firm. The Court also orders Plaintiff and Plaintiff's firm, jointly and severally, to make payable to the Court \$1,000 in sanctions under CCP section 177.5 for violating two lawful Court Orders.